

FAMILY COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER

-----X
TARA WALSH,

Petitioner,

-against-

STEPHEN G. RUSSELL,

Respondent.
-----X

File No. 154703

Docket No. O-06917-18A

AFFIDAVIT

STATE OF CALIFORNIA)
) ss:
COUNTY OF SAN FRANCISCO)

STEPHEN RUSSELL, being duly sworn, deposes and says:

1. I am the Respondent in this action and as such I am fully familiar with the facts and circumstances of this matter. I submit this Affidavit in support of my motion for an order (a) Granting me unsupervised visitation with Evie (b) that Tara's time with Evie be supervised by either a neutral third party or a nanny; (c) Directing a Court Ordered Investigation of Tara's parent's home; (d) Ordering the production of records from Petitioner's emancipation proceedings against her parents; and (e) for such other and further relief that this Court deems just and proper.

BACKGROUND

2. I am filing this motion because it is vital that I be allowed to re-establish a healthy relationship with my daughter and so that the Court addresses Tara's significant accusations relating to her parents. Both Tara and her parents have actively deceived the Court, ignored court orders, and manipulated those around them to undermine my ability to see Evie. In the last 4 months, despite endless requests, I have not been allowed even a single Facetime interaction with my daughter. Despite spending approximately two months in Chappaqua and tens-of-thousands of dollars to rent a home there, a nanny, travel, and other items related to Evie's

childcare, I have only been able to see my daughter for a total of **four hours**, a large portion of which I was forced to spend with Tara, a woman who has admitted to drugging me, lied about being abused, and has admitted to coaching witnesses to lie on her behalf to the Court and Social Services.

3. Further, I feel that I am losing any semblance of a voice regarding the environment my daughter is being raised in. Tara and Evie are currently staying with Tara's parents in Chappaqua. Tara's family is incredibly dysfunctional and controlling and are proponents of heavily medicating their children. Both before this action started and since, Tara has told me a number of disturbing accounts regarding the level of dysfunction in that household which I will address below. I believe that continuing to have Evie cared for by Tara's parents is incredibly harmful to her and must be stopped.

4. The Court's appointment of Delia Farquharson has not been helpful in this regard. In fact, it has been detrimental. Ms. Farquharson was unable to start immediately and without reading the Court Order primarily relied on Tara and Tara's mother for its details. As a result, Ms. Farquharson attempted several ad hoc changes to the order including having my first visit at Tara's house, and when I did not consent to that, bringing Tara to my scheduled visits. She also suggested that I was responsible for 100% of her \$1,800 per week cost including the hours she supervised Tara. Further, while Tara is always with Evie in a natural home environment with family around, for my visits, my family and Evie's nanny since birth were forced to leave. My attorney attempted to call Ms. Farquharson, as did I, on the matter but no calls were returned. Ms. Farquharson simply said later to me that she had a "special relationship with this Judge" and that if she wanted to change the court order she could.

5. I am asking that this Court issue a new and clarified order that takes into consideration the full facts as we now know them. In particular, we ask that the Court allow us to investigate Tara's charges against her parents and in light of these charges I am also seeking to have the Court discontinue Ms. Farquharson's services as a supervisor so that a full-time nanny can be put in her place. A full-time nanny would be a lower financial burden than Ms. Farquharson and would allow for a level of consistency for Evie during her transition back to having two parents in her life.

6. Lastly, I am asking that the Court create some consequences for Tara's failure to follow court orders and her attempts to manipulate the Court. The Court should grant me unsupervised access to Evie with a nanny or have an immediate hearing on my fitness as a parent in order for me to clear my name from Tara's false allegations against me. Tara has already admitted to lying about her charges against me in her San Francisco order of protection hearing testimony. Beyond that, even the most cursory review of our health records would show the Court that I have never been diagnosed with any mental health issues, and Tara has severe mental health issues that include an inability to take care of Evie at night. Meanwhile, despite all the accusations Tara has made, she has never alleged anything demonstrating that I am unable to care for Evie.

7. As the Court is aware, there have been many papers filed in action. However, I feel that the issues in my affidavit are imminently important and need to be addressed. I feel that if the Court does not intervene promptly, and if Tara and her family are left to their own devices, my daughter's entire future will be placed in jeopardy and the Court risks another episode where Tara runs away with or accidentally harms our daughter.

MY VISITS SHOULD NOT BE SUPERVISED

8. In the past four months, I have only managed to have 4 hours of visits with Evie. Enough is enough. At the start of this action, Tara stated that she would be flexible in granting me access to Evie, but in retrospect those statements were part of a ploy to manipulate me and she has been anything but accommodating.

9. In June, I begged to do a Facetime call with Evie or even get pictures of her, but was denied and told that I first needed to drop the criminal charges against her for drugging me. I tried repeatedly to see Evie in August, but Tara and her counsel dragged their feet in signing a stipulation allowing me access to Evie. Tara lied about having a “new job” that prevented her from being available to sign that stipulation. I later learned that this purported “new job” was simply some nebulous part-time work for her Aunt that could have been done on Tara’s schedule.

10. Then, during the last court appearance on September 11, 2018, Tara and I submitted a joint order to the court that a supervisor would be appointed to oversee my reintroduction to Evie and to observe Tara’s parenting of Evie at her parent’s home. The order stated that I would have a minimum of three visits per week for at least two hours per visits. See Temporary Order at Exhibit A. The order also required the supervisor to observe Evie for at least 2 visits per week. The supervisor appointed was, by agreement, Ms. Delia Farquharson, LCSW.

11. Though I do not feel my visitation with Evie needs to be supervised, I volunteered to do so as I wanted Tara to be observed as well and thought this would be a fair compromise. Although Tara has leveled many outrageous claims about me, she has no corroboration for any of them. Meanwhile, Tara has conceded that she is mentally ill, suffering from Borderline Personality Disorder, Bipolar Disorder and Attention Deficit Disorder, to name a few. Tara is on a cocktail of medications which prevent her from taking care of Evie at night. The Court has required that she

not relocate from her parent's home because she is unable to care for herself, let alone an infant.

12. I was hopeful that the visits with Ms. Farquharson would allow me to re-introduce myself into Evie's life and would be short-lived. After all, this entire process has started with significant misrepresentations to the court by Tara which I have established in my prior papers were false. I contacted Ms. Farquharson immediately after our last court appearance to try to schedule visits with Evie, but there were problems from the start. First Ms. Farquharson did not respond to my calls or my counsel's calls and emails for days, and then had limited availability. Then, when I finally managed to schedule a first visit, several incidents occurred which make me concerned about moving forward with Ms. Farquharson as the assigned supervisor to this case.

13. I had my first visit with Evie and Ms. Farquharson on October 5th. Ms. Farquharson invited Tara to be present at the visitation and initially wanted the visit to be Tara's parent's house. Not only do I believe that this is a violation of this Court's Orders, as Tara and I had mutually agreed in court to stay away from each other (except for visitation **pick up** and **drop off**), but having Tara present significantly impeded my visitation with my daughter as I am not comfortable being around Tara given that she has admitted to poisoning me with her medications when we lived together. When I tried to address my concern with Ms. Farquharson, she quickly dismissed my concerns and said that she had a special relationship with the Judge and could change the Court Order if she felt this might be better for Evie.

14. Ms. Farquharson's job is to abide by the Court's order and supervise both my and Tara's interactions with Evie. By stating that she is not going to abide by the Court order and will be inserting her own opinions as to how to act, she is usurping the role of the judge and overstepping her boundaries. By not simply following the Court's order and instead stating that she will have the Court's Order changed, she is asserting that she is not supervising but rather

actively inserting herself in the matter.

15. I went for another visit a few days later, and again Ms. Farquharson had Tara attend the bulk of my visit. I again expressed my concern about having Tara present for my time with Evie, but she dismissed my concerns. My family and nanny were sent away before Tara's arrival and I spent the moments in between calming my crying daughter as Tara walked away and just before her scheduled nap. The visit was short, unnatural, and hampered by the fact that Tara had deliberately not shared any details of Evie's schedule, diet, toys, etc. before the visit, though I had asked for that information.

16. After that visit, I decided to return home to San Francisco briefly for several reasons. After spending two months in New York, there were several important matters in California that needed my attention as I sit on the boards of three companies, despite stepping down as CEO of Prism to focus on Evie. Tara and I also have two homes in San Francisco that all need tending to as well.

17. Lastly, the costs of staying in New York while not generating any income was becoming untenable. Not including legal fees, I am spending approximately \$40,000 per month. I have rented a house nearby Tara in Chappaqua which is costing me \$6,000 per month and I am also still paying rent for the apartment that I got for Tara and the baby in San Francisco, which is running about **\$15,000 per month**. Ms. Farquharson, if I utilized the full time she would give me per week, would cost me over \$6,000 per month. I also retained Evie's nanny at \$8,000 per month in anticipation of having access to Evie and in light of the original stipulation negotiated by Ms. Jackman. The travel costs of going back and forth to California are costing me more than \$2,000 per month. The court might think I am made of money, but as of recently I have exactly zero salary as I have had to take a leave of absence to be in New York to be with my daughter. The

money I am spending now is having to come out of what I had set aside to hopefully put in a trust fund for Evie.

18. But most importantly, the reason I did not want to continue with Ms. Farquharson was because the visits were clearly stressful and harmful to Evie. Given the very short time of the visits, the fact that Tara was hovering over us or coming in and out throughout the visits, and that there was clearly tension in those meetings, I did not believe the visits were good for her. I consulted with experts in the field and they also told me that these visits, in their current format, might be doing more harm than good to Evie.

19. As the Court will recall from our prior motions, Tara had been surreptitiously drugging me with her medication throughout our relationship. A text message to Tara's psychiatrist demonstrates her admitting to this behavior:

So I came home and the nanny told Steve about another thing I had told her in confidence – sometimes when he is out of his mind on drugs and won't sleep I have to put Seroquel in his wine – bc I don't know what to do. The nanny has been throwing me under the bus every night – last night she told him I wanted her to say he was a bad dad...

See Text Message at Exhibit B.

20. Tara has also admitted to drugging me on at least two occasions in a declaration filed in the California court, stating: "I put Seroquel [] in [Steve's] wine." See Tara's July 12, 2018, affidavit at ¶ 22, and at Exhibit C.

21. I believe that Tara has been drugging me for more than one year. After being caught putting the crushed pills into my drink by our nanny, Abby, Tara flippantly dismissed her concerns and even admitted to our nanny and Dan Ochoa (one of my security personnel) that she "did it all the time." See Para 7-9 of Abby's Declaration at Exhibit D.

22. Further, Tara was not just drugging me but also coaching multiple people to lie

about me to social services, including our nanny, her sister Brienne, and her friends in order to discredit me as a father.

23. In addition to drugging me, I believe Tara is also abusing her medication and drugs herself after she refused to take a drug test during our last Court visit.

24. What is most concerning is that Tara shows no remorse and responsibility for her criminal and abusive behavior. In fact, Tara's only regret about her conduct is that she was caught doing it by the nanny. See Exhibit B. Tara is completely unable to discern how abusive, dangerous and manipulative her behavior was, which explains why she admitted to her criminal actions in an affidavit submitted to the Court – she sees nothing wrong in it. When I was younger I saw the film, *One Flew Over the Cuckoo's Nest*, starring Jack Nicholson. What Tara did to me was not unlike how the staff treated the patients in that classic film. She drugged me against my will with powerful medication that she needs to treat her illnesses. She even dosed me with her sister's lithium prescription, which I only found out about after I had a doctor perform a toxicology screening of me.

25. What she did was unbelievably violative of my trust in her (the woman I loved) and was clearly abusive. She then took our daughter and ran 3,000 miles away to her parents so I could not see her. She says in her own text messages that the reason she did that was because she was afraid of confronting her diagnosis. She also says in those messages that if I did not drop criminal charges against her she would create "consequences" for me, and she has certainly made good on that threat by manipulating the court to deny me a relationship with my daughter in the first year of her life.

26. Based on Tara's behavior towards me it is impossible for me to feel safe around her. I do not mean to imply that I am afraid Tara will physically assault me, but she has been

attempting to sever my relationship with our daughter for months and she has abused my trust in her so completely, that I do not trust her to allow me to bond with our daughter again. She will do whatever she can to prevent me from having a relationship with Evie, and it is not proper for her to be present during my visits.

27. In addition to feeling unsafe around my former abuser during my supervised visits, it is also incredibly distracting. It is nearly impossible to focus entirely on Evie during these visits when Tara is there. Evie undoubtedly has a closer relationship with Tara at this point as she has been living with her since she took her from California. It is unfathomable how I would be able to properly engage an infant where her mother is present during the visit or when a visit is so short or when the visit takes place during Evie's naptime or when family and Evie's nanny are kicked out of the house.

28. I feel that Tara and Tara's family are attempting to manipulate Ms. Farquharson just as they manipulated the Court. They are playing on the stereotypes and the reflexes of those familiar with typical family court issues, when this case is anything but typical. There is simply no need for Ms. Farquharson to be present to supervise my visits let alone to kick out my family and nanny so that I might be more strictly and purely assessed. .

29. There is no basis for the Court to order my visits be supervised. To the extent that the Court feels otherwise, the Court should schedule an emergency hearing on this issue to determine whether there is a factual basis for Tara to demand that my visits be supervised. I love my daughter very much and I want to be a part of her life. Tara is systematically trying to cut me out of Evie's life, and the Court should not allow that. These are crucial times in Evie's development. If I am not allowed to form a close bond with her now, it could have repercussions for Evie for the rest of her life.

30. Hearing Ms. Farquharson say that she has a relationship with Your Honor and could have the Court's order changed if she wanted was both disturbing and disheartening. Ms. Farquharson's job is to abide by the Court's order and supervise both my and Tara's interactions with Evie. By stating that she is not going to abide by the Court order and will be inserting her own opinions as to how to act, she is usurping the role of the judge and overstepping her boundaries. By not simply following the Court's order and instead stating that she will have the Court's Order changed, she is asserting that she is not supervising but rather actively inserting herself in the matter.

31. Further, by stating that she can have the order altered by a mere discussion with the Judge is implying that she is capable of having *ex parte* communications with the Court. This is highly inappropriate behavior and even the implication should be grounds for her to be replaced.

32. That Tara is not being observed is also greatly distressing to me in light of Tara's extensive history of mental health issues. Tara openly admits to suffering from borderline personality disorder ("BPD"), bipolar disorder, anxiety disorder and ADHD. BPD is a very serious mental health illness. People with BPD demonstrate patterns of varying moods, self-image, and behavior which often result in impulsive actions and problems in relationships. People with borderline personality disorder may experience intense episodes of anger, depression, and anxiety that can last from a few hours to days.

33. In the time I have known Tara, she has never been fully in control of her mental illnesses and they have also severely impaired her ability to care for Evie. Around May 15th, Tara suffered a delusional episode in which she believed my staff was trying to kidnap Evie and, in her mentally deranged state, Tara allowed Evie, who was just 4 ½ months old, to roll off the bed and hit her head.

34. At one point, in late May 2018, one of Tara's mental health providers from New York contacted me and her other mental health providers to warn us that, although Tara seemed to want to stop taking some of her medications, that she should not stop taking her medications under any circumstances or else she was at risk of becoming psychotic.

35. Tara is unable to care for Evie on her own because of the volatility in managing her mental illnesses. Tara readily admits that her doctors have repeatedly warned her that she cannot stop taking her medications, and she also admits that those same medications often render her unable to take care of Evie. See Text Message from Tara to a friend stating "doc[tor]s are adamant I can't be up with Evie all night with my bipolar it could make me psychotic" at Exhibit E.

36. Tara has exhibited erratic, dangerous, criminal and suicidal behavior over the past several months and, when she is taking her medications as prescribed, she is incapacitated throughout the night and for much of the day. It was for that reason that I insisted that any supervisor also observe Tara's visits, and that is why the Court order requires that. It is disappointing that Ms. Farquharson does not want to do what she is required to do.

37. It seems that Ms. Farquharson is under the impression that I am the party in need of supervision when the exact opposite is true. Tara has also admitted, on the record, to lying about the single incident where she claims I abused her. See pages 93-94 of 8/29/18 Transcript attached hereto as Exhibit F.

38. **Tara, on the other hand, has significant mental health issues. Yet somehow, she has *carte blanche* to take Evie anywhere she wants for any number of days as long as she is not technically "moved out" of her parents' home.**

39. At this point, I think it is imperative that the Court require Tara to have a nanny present for her time with Evie. As explained below, I do not believe that Tara's parents can act in

that capacity, and I believe that their further involvement with Evie will be more detrimental to her.

**RESPONDENT'S PARENTS SHOULD NOT BE INVOLVED IN
OUR DAUGHTER'S THE CHILD'S LIFE**

40. I am very concerned about Evie's continued exposure to Tara's parents. The Walsh family as a whole is incredibly dysfunctional and I do not feel that they should be raising our daughter while Tara is getting treatment for her mental illnesses.

41. Tara has always had an incredibly fraught relationship with her family. During our relationship, Tara frequently voiced to both me and my mother how oppressive and abusive her family had been to her and her siblings.

42. As a youth, Tara ran away from home and filed a court proceeding to be declared an emancipated minor. Tara told me that she ran away from home and eventually moved in with her aunt, who supported her filing the emancipation proceeding in court. I am requesting an order from this Court that Tara or the court provide me access to the filings in that emancipation proceeding. I am certain that the filings in that case will shed light on what was occurring in the household at that time, and raise significant concerns about the Walsh's continued caring for Evie.

43. I feel that if Tara's family are going to be significantly involved with caring for Evie that I have a right to know what allegations Tara made against them in her emancipation petition.

44. Tara has also told me that when she was growing up her mother physically and emotionally abused her and her siblings. Her sister has even discussed their mother's abuse on her online blog, stating: "My mom punished us both for being strong willed. We were hit." See 1/21/18 Blog Post at Exhibit G.

45. Tara's therapist, Rita Mercante, alludes to Tara's unstable and abusive childhood,

stating, “due to her childhood history, Tara experiences abandonment anxiety that is triggered when she perceives abandonment.” See Exhibit H.

46. In addition to the emotional abuse and beatings, Tara told me that she and her siblings were placed on psychotropic medication from an early age. Tara has told me that both her mother and her adopted sister, who is in her early teens, are both prescribed lithium for mood disorders, and other medications as well.

47. That Tara’s family are so incredibly quick to place their children on significant medication is incredibly disturbing. In light of this fact, I do not believe that they should be the primary caretaker’s for Evie, which is undoubtedly the role that they are playing presently given Tara’s mental health issues.

48. I have every reason to believe that Tara’s family are reverting to these similar cycles of abuse. Even recently, Tara has expressed how she hates living with her family and that she desires to leave. On August 9, 2018, Tara sent my mother an extremely disturbing text stating:

My mom is furious I want to leave and stopped getting me dinner last night and have no car [] to drive-so just eating cereal for past 48 hours...

My mom doesn’t ever want [Evie] to leave. But I seriously cannot stand living here...

See text messages attached as Exhibit I.

49. Either Tara is lying or she is delusional regarding these recent episodes or her family continues to be deeply dysfunctional. Both scenarios are extremely disconcerting. Therefore, I am also requesting that the Court order a Court Ordered Investigation (COI) of the Walsh’s home. It is absolutely necessary for a third party to understand the level of dysfunction which occurs in this home, and why the prospect Tara’s family helping raise my daughter is so unnerving.

50. The way Tara and her siblings were raised has left an indelible impact on Tara and her siblings. Out of all three siblings, not one of them is able to properly function in society or be self-supporting. As stated above, Tara is incapacitated by her mental illness and is unable to work or properly care for Evie. Brienne, Tara's sister, is not gainfully employed, but rather, is trying to make a living as a blogger, blogging about her daily life.

51. However, despite the fact that Tara's parents have severely damaged their own children, their 'holier than thou' mindset leads them to believe they know what is best for Evie.

52. This self-righteous attitude has extended to them recently adopting two adolescent girls from Korea. It is strange that they feel that they are in a position to mold two more young minds when all three of their children have severe emotional issues. Upon information I have received from Tara, the younger of the two adopted children was placed on Lithium at age 12 and Tara stated that she attempted to assault her father with a knife. I believe that there is a police report of this incident. Additionally, I have been told that both girls are forced to dress the same despite being three years apart.

53. The fact that Tara is in the care of her parents offers me no solace whatsoever. They are virtually non-cooperative in supervising her and ensuring that she and Evie are safe. Tara's parents have explicitly stated that they "don't want to be involved in the legal stuff," meaning they have no intention of acting as supervisors.

54. Tara's parent's also refuse to support Evie and Tara despite being extremely well off. They require Tara to work outside the home, which forces her to take the train to New York twice a week. This is paradoxical, as Tara's parents actively support the notion that Tara and Evie need to live with them due to her psychological condition. Tara is out of the house often for work, treatment and tending to her dogs in the city. She is also unable to care for Evie at night. With Tara

gone as often as she is, her parents are not acting as grandparents who babysit, but rather attempting to take over as parents. It seems that they are essentially setting things up so that they can ultimately edge Tara out and be solely responsible for Evie.

55. Tara's family's tyrannical and controlling nature knows no bounds. They have attempted to obstruct my access to Evie at every turn as well. Until September, they refused to comply with the Court order that granted me supervised visitation with Evie. They have openly expressed their disdain for me. If they continue to be involved, they will ensure that I too am completely shut out of Evie's life.

CONCLUSION

56. Whereas I have been nothing but truthful during this entire matter, Tara has continuously lied to this Court.

57. Tara lied about me being abusive towards her when in fact, she was the one who was physically harming me for over a year. She refuses to take a drug test. During the last few weeks, she has refused to allow supervision by Delia Farquharson. Tara has managed to commit these egregious acts all while experiencing no consequences. Beyond that she has denied me half of the first year of my daughter's life and continues to undermine my relationship with her which I cannot condone.

58. She is placing herself and Evie at risk of imminent harm by returning to a family environment that she ran away from, with people who are enabling her avoidance of consequences and beneficial treatment.

59. What is most beneficial to Evie is to have her father in her life. I fear that if the Court does not order the requested relief, I am in danger of further estrangement from Evie. The Court should no longer continue to countenance Tara's bad behavior and manipulation tactics.

WHEREFORE, I respectfully request that this Court grant my cross motion in its entirety, together with such other and further relief as the Court deems just and proper.


Stephen G. Russell

Sworn to me on this
22nd day of October 2018


Notary Public

